

Court No. - 2

Case :- WRIT - C No. - 48192 of 2011

Petitioner :- M/S Vehlana Steel & Alloys (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

As prayed, put up on 26.8.2011 as a fresh.

Order Date :- 24.8.2011

S.P.

Petitioner :- M/S Vehlana Steel & Alloys (Pvt.) Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Heard Shri B.C. Rai learned counsel for the petitioner and Shri Shashi Nandan assisted by Shri Pankaj Kumar Shukla, learned counsel for the respondents no. 1,2 and 4.

This writ petition has been filed by the petitioner praying for a writ of certiorari calling for the records of the case and setting aside/quashing the order of final assessment dated 4.8.2011 (Annexure No. 17 to the writ petition).

Learned counsel for the respondents has raised a preliminary objection that under section 127 of the Electricity Act, 2003 the petitioner has statutory remedy of filing an appeal. There being remedy of appeal the writ petition can not be entertained.

The petitioner challenging the impugned order pressed various submissions and submitted that the case of the petitioner was different as compared to other consumers against whom action was taken on the same day.

He further submits that this Court on 3.9.2010 in writ petition no. 53446 of 2010 filed by the petitioner permitted the petitioners to file reply alongwith the relevant documents. He submitted that the petitioner had asked for various documents from the respondents. which was not provided to them which prejudiced their case in submitting the reply. It is further submitted that the respondents ought to have dropped the entire proceedings in view of provisions of para 8.1.(b)(ii) of U.P. Electricity Supply Code 2005 and in not doing so the respondents have acted without jurisdiction.

We have heard learned counsel for the petitioner and perused the record.

Although learned counsel for the petitioner has raised submissions on the merit stating that in the checking report, the report submitted with the police as well as meter checking report nothing adverse was found, but the petitioner having statutory remedy of filing an appeal, we are not inclined to entertain such issues on merits. The order of

the assessment is a detailed order. For appreciating the submissions of learned counsel for the petitioner, it shall be necessary for this Court to enter into facts which is not the stage at present.

In view of the aforesaid, we are of view that the petitioner may avail the statutory remedy as provided under section 127 of the Electricity Act, 2003.

Learned counsel for the petitioner submitted that the respondents have permitted reconnection by accepting the deposit of lessor amount which fact has been disputed by learned counsel for the respondents. We are not required to issue any direction or express any opinion in above regard. We only observe that it shall be open for the petitioner to make similar request to the competent authority if any such action has been taken by the respondents. It shall also be open for the petitioner to make request for any other document or report which may be required for filing the appeal which shall be given by the respondents within one week.

Shri B.C. Rai, learned counsel for the petitioner further submitted that U.P. Power Corporation in another matter which is pending in the Apex Court being Special Leave to Appeal No.31731 of 2009 has raised submissions that no appeal is maintainable against the assessment order passed under Section 135. In the present case, we have taken a view that under Section 127 the petitioner has a remedy of filing an appeal against the order impugned and the Corporation has also made the same submission that a statutory remedy is available to the petitioner. Shri B.C. Rai further submits that remedy of appeal is not efficacious hence petitioner be not relegated to avail the earlier statutory remedy. We do not agree with the petitioner that the remedy of appeal remedy is not efficacious. The Electricity Act, 2003 is a self contained code and in appeal, the appellate authority has ample jurisdiction to consider all aspects of the matter and take appropriate decision. The submission of the petitioner that the said remedy is not efficacious is rejected.

With these observation, the writ petition is disposed of.

Order Date :- 26.8.2011

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